

(2) The railway administration shall, out of the sale proceeds received under sub-section (1) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus, if any, of such sale proceeds, shall be rendered to the person entitled thereto.

Comment

Section 85 provides for disposal of perishable consignment in the circumstances mentioned therein.

86. Sales under Secs. 83 to 85 not to affect the right to suit.- Notwithstanding anything contained in this chapter the right of sale under Secs. 83 to 85 shall be without prejudice to the right of the railway administration to recover by suit, any freight, charge, amount or other expenses due to it.

Comment

Section 86 lays down that right of sale under Secs. 83 to 85 shall not be a bar to the recovery of freight or other charges, etc. by railway administration by suit.

87. Power to make rules in respect of matters in this Chapter.- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) in particular, and without prejudice to the generally of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a) goods in respect of which no forwarding note shall be executed under proviso sub-section (1) of Sec. 64 ;

(b) dangerous and offensive goods for the purposes of sub-section (1) of Sec. 67;

(c) infectious or contagious diseases for the purposes of Sec. 68 ;

(d) rates of penalty charges under Sec. 73 ;

(e) the manner in which the consignment may be delivered without a railway receipt under Sec. 76;

(f) the manner in which the consignment or the sale proceeds to the person entitled thereto under Sec. 77 ;

(g) the conditions subject to which and charges payable for allowing weighment and circumstances for not allowing weighment of consignment in wagon-load or train-load under Sec. 79 ;

(h) the manner of giving open delivery under Sec. 81 ;

(i) the form of partial delivery certificate under sub-section (2) of Sec. 82 ;

(j) the manner of sale of consignment or part thereof under the proviso to sub-section (2) of Sec. 83 ;

(k) the manner in which a notice under sub-section (3) of Sec. 83 may be given ; (l) generally, for regulating the carriage of goods by the railways.

(3) Any rule made under this section may provide that a contravention thereof shall be punishable with fine which may extend to one hundred and fifty rupees.

(4) Every railway administration shall keep at each station a copy of the rules for the time being in force under this section, and shall allow any person to refer to it free of charge.

Comment

Section 87, sub-section (1) and (2) empower the Central Government to make rules for carrying out the purposes of Chapter IX. The matters in respect of which rules may be made by the Central Government are enumerated in detail in sub-section (2) sub-sections (3) and (4) empower the Central Government to provide for punishment for contravention of rules made under this clause and impose an obligation on railway administration to allow the inspection of such rules free of charge.

Rules - Power of framing .- The general power of framing rules for effectuating the purposes of the Act would plainly authorize and sanctify the framing of such a rule.

CHAPTER X

Special Provisions as to Goods Booked to Notified Stations

88. Definitions .- In this Chapter, unless the context otherwise requires,-

- (a) "essential commodity" means an essential commodity as defined in Cl. (a) of Sec. 2 of the Essential Commodities Act, 1955 (10 of 1955)